

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
EDRAS RIVERA RODRIGUEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, FORMER NYPD POLICE
OFFICER ANTHONY RAPPOCCIO, Shield No. 30138,
NYPD POLICE OFFICER SERGEY POGOSYAN, Shield
No. 24198, NYPD POLICE OFFICER PEDRO CRUZ,
Shield No. 25466, NYPD POLICE OFFICERS JOHN
DOES NUMBERS ONE THROUGH TEN,

Defendants.
----- X

SUMMONS

Index No.:

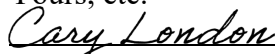
The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 12, 2022

Yours, etc.

Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

FORMER NYPD POLICE OFFICER ANTHONY RAPPOCCIO, Shield No. 30138,
One Police Plaza, New York, NY 10038

NYPD POLICE OFFICER SERGEY POGOSYAN, Shield No. 24198, 41st Precinct, 1035
Longwood Avenue, Bronx, NY 10459

NYPD POLICE OFFICER PEDRO CRUZ, Shield No. 25466, Transportation Bureau
Citywide Traffic Task Force, 138 W 30th Street, NY, NY 10001

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

EDRAS RIVERA RODRIGUEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, FORMER NYPD POLICE
OFFICER ANTHONY RAPPOCCIO, Shield No. 30138,
NYPD POLICE OFFICER SERGEY POGOSYAN, Shield
No. 24198, NYPD POLICE OFFICER PEDRO CRUZ,
Shield No. 25466, NYPD POLICE OFFICERS JOHN
DOES NUMBERS ONE THROUGH TEN,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff Edras Rivera Rodriguez, by his attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On or about June 21, 2021, at approximately 2:00 a.m., Plaintiff Edras Rivera Rodriguez, while in police custody at the 41st Precinct, County of Bronx, New York, was subject to unlawful conditions of confinement, intentional and negligent infliction of emotional distress, excessive detention, assault, battery, and excessive use of force by defendant Police Officers. In doing so, defendant Police Officers injured Plaintiff's legs and feet, causing significant and permanent damage, necessitating hospital treatment and multiple surgeries. Plaintiff has also sustained continuous psychological and economic injury as a result of the assault. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law and statutory rights when the individual defendants unlawfully assaulted, battered, and subjected Plaintiff to excessive force in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Edras Rivera Rodriguez is a resident of the state of New York.

3. Former NYPD Police Officer Anthony Rappoccio, Shield No. 30138, was at all times relevant herein an Officer with the New York City Police Department.

4. Former NYPD Police Officer Anthony Rappoccio, Shield No. 30138, is being sued in their individual and official capacity.

5. At all times relevant herein, Former NYPD Police Officer Anthony Rappoccio, Shield No. 30138, was assigned to the 41st Police Precinct of the NYPD.

6. NYPD Police Officer Sergey Pogosyan, Shield No. 24198, was at all times relevant herein an Officer with the New York City Police Department.

7. NYPD Police Officer Sergey Pogosyan, Shield No. 24198, is being sued in their individual and official capacity.

8. At all times relevant herein, NYPD Police Officer Sergey Pogosyan, Shield No. 24198, was assigned to the 41st Police Precinct of the NYPD.

9. NYPD Police Officer Pedro Cruz, Shield No. 25466, was at all times relevant herein an Officer with the New York City Police Department.

10. NYPD Police Officer Pedro Cruz, Shield No. 25466, is being sued in their individual and official capacity.

11. At all times relevant herein, NYPD Police Officer Pedro Cruz, Shield No. 25466, was assigned to the 41st Police Precinct of the NYPD.

12. NYPD Police Officers John Does Numbers One Through Ten were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. NYPD Police Officers John Does Numbers One Through Ten are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department,

which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

17. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on January 31, 2022.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On June 21, 2021, at approximately 2:00 a.m., Plaintiff was in police custody at the 41st Precinct, County of Bronx, New York, when defendant Police Officers brutally assaulted Plaintiff without legal justification.

22. During his arrest, Plaintiff told defendant Police Officers that he had previously broken both his ankles and had recently had major surgery to repair his injuries.

23. While in custody at the 41st Precinct, Plaintiff informed defendant Police Officers that his handcuffs were too tight.

24. Plaintiff complained to defendant Police Officers that the tight handcuffs were causing him to experience discomfort in his chest.

25. Plaintiff also complained to defendant Police Officers that the handcuffs were causing him to experience dyspnea.

26. Defendants Police Officer Sergey Pogossyan, Shield No. 24198 and former Police Officer Anthony Rappoccio, Shield No. 30138, rejected Plaintiff's requests for assistance and escorted him into a holding cell.

27. Defendant Police Officer Sergey Pogosyan, Shield No. 24198, then tightened and squeezed Plaintiff's handcuffs around his wrists further, intentionally and maliciously causing Plaintiff more discomfort.

28. As a result, Plaintiff sought to relieve some of the discomfort in his chest and difficulty breathing by clearing his throat.

29. Plaintiff's throat-clearing produced an audible scratching noise that defendant Police Officers mistook for Plaintiff preparing to spit on them.

30. Defendant Police Officer Anthony Rappoccio, Shield No. 30138, suddenly and violently pushed Plaintiff onto a bench.

31. Defendant Police Officers then swarmed and jumped onto the seated Plaintiff, continuously ordering him to sit down and pushing his head and face firmly into a concrete wall.

32. Plaintiff immediately began pleading urgently for the defendant Police Officers to avoid his feet.

33. Defendant Police Officer Anthony Rappoccio, Shield No. 30138, responded to Plaintiff's pleas for mercy by stating the Police Officers did not care.

34. Plaintiff continued to scream about his vulnerable feet while defendant Police Officers wrenched his legs.

35. Defendant Police Officer Sergey Pogosyan, Shield No. 24198, pressed his knee aggressively into Plaintiff's left thigh, applying continuous pressure on Plaintiff's left leg and foot.

36. Defendant Police Officer Anthony Rappoccio, Shield No. 30138, stomped onto Plaintiff's right foot and ankle, destroying Plaintiff's surgical implants.

37. Plaintiff screamed in agony, shouting to defendant Police Officers that his feet were breaking.

38. Defendant Police Officers ignored Plaintiff's pleas and continued to crush Plaintiff's legs until they had finished handcuffing Plaintiff to an adjacent cell.

39. Plaintiff conveyed to defendant Police Officers before, during, and after the assault, that his legs and feet were particularly vulnerable due to the prior injuries.

40. Plaintiff sustained injuries to both of his legs and feet, with particularly significant and permanent injuries to his right foot.

41. Plaintiff required additional surgeries on his right foot to replace screws and pins from previous surgeries which were dislodged or otherwise destroyed as a result of the defendant Police Officers' assault.

42. Plaintiff has still not fully recovered from those injuries as of the time of his 50H hearing- he may need additional surgeries or even amputation.

43. Immediately following the assault, Plaintiff requested medical attention, but defendant Police Officers refused to call for an ambulance.

44. Plaintiff remained in custody with significant injuries to his lower body for approximately ninety (90) minutes without medical attention.

45. When defendant Police Officers noticed that Plaintiff's right foot had become black, discolored, and swollen, they then called an ambulance.

46. The ambulance took approximately ninety (90) minutes to arrive before transporting Plaintiff to Lincoln Hospital for evaluation.

47. Plaintiff was transported to Montefiore from Lincoln Hospital for emergency surgery the following day, and then was transported back to Central Booking for processing and arraignment.

48. Plaintiff has also suffered psychological and economic injury as a result of the defendant Police Officers' assault.

49. As a result of the injuries sustained by Plaintiff as a result of the assault, Plaintiff is no longer able to engage in his favorite physical activities and hobbies, such as fishing and running, that he enjoyed before and after his recovery from prior surgeries.

50. Plaintiff has been unable to return to work as a superintendent as a result of the assault, suffering a loss of income of approximately seven hundred fifty (750) dollars per week.

51. Plaintiff does not have health insurance and is unable to cover the accrued costs of ambulance trips, hospital expenses, and medical treatment for the injuries caused by the defendant Police Officers' assault.

52. Plaintiff will likely continuously incur medical expenses related.

53. Plaintiff has also suffered emotional and psychological distress following the assault, particularly from anxiety, difficulty sleeping, difficulty eating, fear of leaving his home, and general fear of police officers.

54. Plaintiff has been unable to seek counseling or treatment for his emotional trauma due to the costs of treatment and travel, as well as his physical inability to travel easily.

FIRST CAUSE OF ACTION**Violation of Plaintiff's Fourth And Fourteenth Amendment Rights:
Excessive Force**

55. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

56. The use of excessive force by defendants by, amongst other things, roughly handcuffing, beating, and stepping on Plaintiff's legs and feet constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

57. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION**Assault**

58. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

59. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

60. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

63. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Battery

64. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

65. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner, roughly handcuffed, jumped on top of, beat, and stepped on the right foot of Plaintiff, brutally effecting an arrest of Plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

66. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

70. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

71. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

72. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

73. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

76. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

77. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

78. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

79. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SIXTH CAUSE OF ACTION
Failure to Intervene

80. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

81. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

82. Defendants failed to intervene to prevent the unlawful conduct described herein.

83. As a result of the foregoing, Plaintiff's suffered serious, debilitating and permanent injury, his liberty was restricted for an extended period of time, he was put in fear of his safety, his injuries worsened, he did not receive timely medical treatment, and he was humiliated and subject to other physical constraints.

84. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

87. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION
Deliberate Indifference to Medical Needs

88. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

89. Defendants, despite being aware that Plaintiff's already ailing lower body required emergency medication and additional treatment from medical professionals, delayed Plaintiff's medical treatment and refused to administer and properly procure immediate and adequate medical attention.

90. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

93. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION
Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

94. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

95. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

96. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

97. The Defendant Officers, while in uniform, unlawfully and intentionally stomping on his legs and feet, thereby causing serious injury.

98. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

NINTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

99. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

100. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

101. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

102. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

103. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

104. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

TENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

98. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

99. Defendant Officers are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

100. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

101. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

102. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

103. The Defendant Officers, while in uniform, subjected Plaintiff to excessive use of force while Plaintiff was in their custody by intentionally stomping on his legs and feet, thereby causing serious injury.

104. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

ELEVENTH CAUSE OF ACTION

City-Employer’s Liability for Defendant Officer’s Failure to Intervene in Violation of Plaintiff’s AC 8-802 Rights

105. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

106. Defendant Officers are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

107. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

108. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

109. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and

to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

110. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

111. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

112. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

TWELFTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

113. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

114. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

115. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

116. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

117. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

118. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff Edras Rivera Rodriguez demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
July 12, 2022

By: Cary London
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

FORMER NYPD POLICE OFFICER ANTHONY RAPPOCCIO, Shield No. 30138,
One Police Plaza, New York, NY 10038

NYPD POLICE OFFICER SERGEY POGOSYAN, Shield No. 24198, 41st Precinct, 1035
Longwood Avenue, Bronx, NY 10459

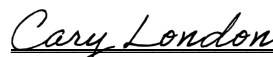
NYPD POLICE OFFICER PEDRO CRUZ, Shield No. 25466, Transportation Bureau
Citywide Traffic Task Force, 138 W 30th Street, NY, NY 10001

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 12, 2022


CARY LONDON